

Kitab Shree v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 January 2021 · WRIT - C No. - 27622 of 2020 · **Writ disposed; relegated to Clause 6.14; coercive action stayed meantime.**

HEADNOTE

The Allahabad High Court disposed of a writ challenging a Dakshinanchal Vidyut Vitran Nigam Limited theft-assessment demand by relegating the consumer, who had confined the prayer to easy instalments, to Clause 6.14 of the Electricity Supply Code, 2005. A representation was to be made within two weeks and decided in accordance with law within four weeks; coercive action on the demand was stayed in the meantime. The Court did not quash the notice or decide the assessment.

FACTUAL SUMMARY

Kitab Shree challenged a demand notice dated 22 August 2019 issued by the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Saifai, Etawah. At the hearing the petitioner confined the prayer to paying the claimed dues in easy instalments. Counsel for the licensee stated that a surprise inspection on 25 January 2019 found theft of electricity; a provisional notice dated 13 March 2019 was served by registered post; no objection was filed, so the assessment was treated as final; and the demand followed. He pointed to Clause 6.14 of the Electricity Supply Code, 2005 as the remedy for instalment relief.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

Where the consumer confined a writ against a DVVNL demand (arising from a theft inspection treated as a final assessment for want of objection) to a request to pay in easy instalments, the High Court disposed of the petition by directing the consumer to approach the Executive Engineer under Clause 6.14 of the Electricity Supply Code, 2005 by representation within two weeks, to be considered and decided in accordance with law within four weeks, and directed that no coercive action be taken on the demand in the meantime. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated Clause 6.14 as the forum for considering the consumer's request to pay a finalized theft-assessment demand in instalments, without deciding the assessment on merits, and stayed coercive recovery while that representation was pending. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 22 AUGUST 2019 DEMAND AND THE UNDERLYING THEFT ASSESSMENT

Counsel confined the prayer to instalments; the Court neither quashed the notice nor examined whether the provisional assessment was lawfully treated as final. ¶ 1